

**El Paso County
Delia Briones
County Clerk**

Instrument Number: 00000000073

ma.mendez

Recorded On: 3/10/2026 8:13:51 AM

Number of Pages: 1

Examined and Charged as Follows:

Total Recording: 24.00

*****THIS PAGE IS PART OF THE INSTRUMENT*****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

File Information

Document Number 00000000073
Receipt Number 1961765
Recorded Date/Time: 3/10/2026 8:13:51 AM
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State of Texas
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon,
and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones
County Clerk
El Paso County, TX

NOTICE OF FORECLOSURE

Notice is hereby given of a public nonjudicial foreclosure sale.

1. **Property to Be Sold.** The property to be sold is described as follows:

Tract 66, VALLEY GATE SUBDIVISION, in the City of El Paso, El Paso County, Texas, according to the plat thereof recorded in Volume 2, Page 63, of the Plat Records of El Paso County, Texas, being more particularly described by metes and bounds in Exhibit "A", attached hereto and made part hereof for all purposes intended.

2. **Date, Time, and Place of Sale.** The sale is scheduled to be held at the following date, time, and place:

Date: April 7, 2026.

Time: The sale shall begin no earlier than 10:00 A.M. or no later than three hours thereafter. The sale shall be completed by no later than 1:00 P.M.

Place: El Paso County Coliseum in El Paso, Texas, at the following location: 4100 East Paisano Drive, El Paso, Texas 79905.

Notice of the date of any rescheduled foreclosure sale will be reposted and re-filed in accordance with the posting and filing requirements of the Texas Property Code. Such reposting or re-filing may be after the date originally scheduled for this sale.

3. **Terms of Sale.** The sale will be conducted as a public auction to the highest bidder for cash, subject to the provisions of the Deed of Trust permitting the beneficiary thereunder to have the bid credited to the note up to the amount of the unpaid debt secured by the deed of trust at the time of sale.

Those desiring to purchase the property will need to demonstrate their ability to pay cash on the day the property is sold.

The sale will be made expressly subject to any title matters set forth in the deed of trust, but prospective bidders are reminded that by law the sale will necessarily be made subject to all prior matters of record affecting the property, if any, to the extent that they remain in force and effect and have not been subordinated to the deed of trust. Prospective bidders are strongly urged to examine the applicable property records to determine the nature and extent of such matters, if any. No representation of any kind, either expressed or implied, is made by Trustee or Substitute Trustee regarding the nature or status of the property, the quality of title, any interests that may be superior to the deed of trust interests being foreclosed, any lawsuits affecting the property, taxes owed, or other assessments against the property. Purchaser takes the property subject to such superior interests as well as any and all defects in title or property and shall be solely responsible for the resolution of each.

4. **Type of Sale.** The sale is a nonjudicial deed of trust lien foreclosure sale being conducted pursuant to the power of sale granted by the deed of trust executed Brenda Morales and

7208 Ponce Drive
El Paso, Texas 79915

Juan Soto. The deed of trust is dated September 4, 2019, and on file under document number 20190074536.

5. Obligations Secured. The deed of trust provides that it secures the payment of the indebtedness and obligations therein described (collectively, the "Obligations") including but not limited to (1) the promissory note in the original principal amount of \$95,000.00, executed by Brenda Morales and Juan Soto, and payable to the order of Will Dylan Investments, Inc.; said note transferred by a Transfer of Notes and Liens to CMWD Capital, LP, recorded under Document No. 20230046128; (2) all renewals and extensions of the note; and (3) any and all present and future indebtedness of Brenda Morales and Juan Soto to CMWD Capital, LP. CMWD Capital, LP is the current owner and holder of the Obligations and is the beneficiary under the deed of trust.

Questions concerning the sale may be directed to the undersigned:

The Law Offices of Michael J. Zimprich
7001 Westwind Drive, Suite 205
El Paso, Texas 79912
Attention: Michael Zimprich
Telephone: (915) 201-4944

6. Default and Request to Act. Default has occurred under the deed of trust, and the beneficiary has requested that the Trustee, Michael J. Zimprich and/or Beverly Mitrisin, 7001 Westwind Drive, El Paso, Texas 79912 conduct this sale. Notice is given that before the sale the beneficiary may appoint another person substitute trustee to conduct the sale.

Assert and protect your rights as a member of the armed forces of the United States. If you are or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately.

EXECUTED this 27th day of February 2026.



Michael J. Zimprich

179—DEED OF TRUST

TEXAS STANDARD FORM

The State of Texas,
County of EL PASO

60669
Known All Men by These Presents:

That we, REYNALDO AMOR and wife, EMILIA AMOR,

of El Paso County, Texas, hereinafter styled parties of the first part, (and considered in the plural sense whether one or more) in consideration of the sum of One Dollar in hand paid to the parties of the first part, by Bob W. Fleming, Trustee, party of the second part, of El Paso County, Texas, the receipt whereof is hereby acknowledged, and of the further consideration, uses, purposes and trusts herein set forth and declared, have Granted, Bargained, Sold, Alienated, Conveyed and Confirmed, and by these presents do Grant, Bargain, Sell, Alien, Convey and Confirm, unto the said party of the second part, and also to the Subsequent Trustee, as hereinafter provided, all of the following described property, lying and situated in the County of El Paso, in the State of Texas, to-wit:

All that portion of Tract Sixty-Six (66), of VALLEY GATE SUBDIVISION, in the City of El Paso, El Paso County, Texas, containing 0.166 of an acre of land more or less, and particularly described as follows, to-wit:

BEGINNING at the Northwest corner of the Tract of land conveyed to Ignacio Ponce and wife, Francisca Ponce, by Deed dated October 30, 1955, and recorded in the Deed Records of El Paso County, Texas;
THENCE South 55 degrees 55' East along the South line of the Playa Drain 90 feet to a stake for corner;
THENCE South 33 degrees 54' West 80.40 feet to stake for corner;
THENCE North 56 degrees 06' West 90 feet to a stake for corner;
THENCE North 33 degrees 54' East 80.68 feet to the place of beginning, containing 0.166 of an acre, more or less.

together with all improvements thereon, or hereafter to be placed thereon, and all and singular the rights and appurtenances to the same belonging or in anywise incident or appertaining.

TO HAVE AND TO HOLD unto the said party of the second part, and to his successors and his and their assigns forever, hereby covenanting and agreeing to Forever Warrant and Defend the premises aforesaid, and every part thereof, unto the said Trustee and to the Subsequent Trustee, and to the assigns of any Trustee hereinafter, against all persons whomsoever lawfully claiming or to claim the same or any part thereof for and upon the following trusts, terms and conditions, to-wit: